

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
TYRONE ADAMS, MELYNE RIOS and
MOSES SIMMONS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN
LATANZIO (Shield #8320), SERGEANT DAVID VARGAS
(Shield #5180), SERGEANT TIMOTHY BURKE (Shield #3879)
POLICE OFFICERS JANE & JOHN DOE'S #'s 1-6
(names and numbers are unknown at present) and other unidentified
members of the New York City Police Department,

Defendants.
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SUMMONS

Index #

Basis of Venue:
Place of Incident

Plaintiff designates
Bronx County
as place of trial

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 18, 2021

Respectfully submitted,

/s/

Brownstein Legal, P.C.
Ilissa Brownstein, Esq.
40 Exchange Place (Suite 1000)
New York, New York 10005
(212) 691-3333
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007
POLICE JOHN LATANZIO (Shield # 8320) 44th Precinct Bronx, New York
SERGEANT DAVID VARGAS (Shield #5180) 44th Precinct Bronx, New York
SERGEANT TIMOTHY BURKE (Shield #3879) 44th Precinct Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
TYRONE ADAMS, MELYNE RIOS and
MOSES SIMMONS,

Plaintiffs,

VERIFIED COMPLAINT

Index #:

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN
LATANZIO (Shield #8320), SERGEANT DAVID VARGAS
(Shield #5180), SERGEANT TIMOTHY BURKE (Shield #3879)
POLICE OFFICERS JANE & JOHN DOE'S #'s 1-6
(names and numbers are unknown at present) and other unidentified
members of the New York City Police Department,

Defendants.

-----X
Plaintiffs **TYRONE ADAMS, MELYNE RIOS** and **MOSES SIMMONS**, by their attorney, ILISSA
BROWNSTEIN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiffs were unlawfully arrested by the defendants. Plaintiffs were deprived of their federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiffs, caused the unjustifiable arrest of plaintiffs and malicious prosecution of plaintiffs. Defendants additionally used excessive force in violation of Plaintiffs constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. TYRONE ADAMS is a citizen of the United States and a resident of New York, New York.
3. MELYNE RIOS is a citizen of the United States and a resident of New York, New York.
4. MOSES SIMMONS is a citizen of the United States and a resident of New York, New York.

5. OFFICER JOHN LATANZIO (Shield # 08320) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. OFFICER JOHN LATANZIO (Shield # 08320) is being sued in his/her individual capacity and official capacity.
7. SERGEANT DAVID VARGAS (Shield #5180) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. SERGEANT DAVID VARGAS (Shield #5180) is being sued in his/her individual capacity and official capacity.
9. SERGEANT TIMOTHY BURKE (Shield #3879) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. SERGEANT TIMOTHY BURKE (Shield #3879) is being sued in his/her individual capacity and official capacity.
11. Police Officer John Doe Number 2 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
12. Police Officer John Doe #2 is being sued in his individual capacity and official capacity.
13. New York Police Officers John and Jane Doe #'s 2-6 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
14. Police Officers John & Jane Doe #2-6 are being sued in his/her individual capacity and official capacity.
15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
19. The City of New York held 50(h) hearing examinations of the Plaintiffs on July 31, 2020.

STATEMENT OF FACTS

20. On April 28th, 2020 at approximately 4pm, at 1105 Jerome Avenue, Bronx, New York. Plaintiffs were inside of a 2015 gray Chevy Impala (License Plate No. JMT8055) when PO John Latanzio, SGT David Vargas, SGT Timothy Burke and other NYPD police officers illegally stopped, searched, and unlawfully arrested Plaintiffs ADAM and RIOS for Obstructing Governmental Administration and SIMMONS for Obstructing Governmental Administration and Unlawful Possession of Marijuana.
21. Plaintiffs did not get in the way of an official police duty. SIMMONS did not sell marijuana and was not in actual or constructive possession of marijuana.
22. At arraignment Mr. Simmons received an ACD. Adams and Rios received Desk Appearance Ticket's at the precinct. Their criminal cases were declined to prosecute by the DA's Office prior to arraignment on the DAT.

FIRST CAUSE OF ACTION

ASSAULT

23. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 22 with the same force and effect as if more fully set forth at length herein.
24. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Defendant was assaulted by numerous officers.
25. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
26. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondent superior.

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

27. Plaintiffs repeat and allege paragraphs 1 through 26 as if fully set forth herein.
28. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
29. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
30. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondent superior.
31. As a result of the foregoing, plaintiff s were subjected to an illegal search and undue force upon his person over the course of the false arrest.
32. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
33. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondent superior.

THIRD CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

34. The plaintiffs' repeat, reiterate and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.
35. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
36. As a result of the foregoing, plaintiffs were deprived of liberty and sustained great emotional injuries.

37. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondent behavior.

FOURTH & FIFTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of Fourth, Fifth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal false-arrest/excessive-force/unlawful-search claims (4th claim) and deprivation-of-fair-trial claim (5th claim).

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.
39. Defendants and other NYPD officers, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
40. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
41. Plaintiffs' federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his Fourth, Fifth, Eighth and Fourteenth Amendment rights.
42. In particular, Plaintiffs allege that Defendants' retaliatory and harassing false arrest, use of undue force upon him, unlawful search, malicious prosecution and fabrication of evidence violated his Fourth, Fifth, Eighth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.
43. Insofar as Plaintiffs' federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiffs repeat and reiterate the above allegations in support of the federal claims here.
44. In the event Plaintiffs prevails at trial on one, some or all of his 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, they also seek reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

SIXTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.
46. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

47. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
48. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
49. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.
50. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
51. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested, subjected to undue force and unlawful search, and prosecuted.
52. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiffs' constitutional rights.

WHEREFORE, TYRONE ADAMS, MELYNE RIOS and MOSES SIMMONS, plaintiffs, demand a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
May 18, 2021

Respectfully submitted:

By: /s/
Brownstein Legal, P.C.
Ilissa Brownstein, Esq.
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New York, New York 10005
(212) 691-3333
ib@brownsteinlegal.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007
POLICE JOHN LATANZIO (Shield # 8320) 44th Precinct Bronx, New York
SERGEANT DAVID VARGAS (Shield #5180) 44th Precinct Bronx, New York
SERGEANT TIMOTHY BURKE (Shield #3879) 44th Precinct Bronx, New York

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is that Plaintiffs are out of the county.

DATED: New York, New York
May 18, 2021

_____/s/
Ilissa Brownstein, Esq.